Keating Research, Inc. Agreement

This Vendor Agreement is dated September 1, 2023 (the "Effective Date"), and is between **Keating Research, Inc.** and the **San Miguel Authority for Regional Transportation (known as SMART)**.

Keating Research, Inc. and **SMART** hereby agree as follows:

1. The Project. **SMART** hereby engages **Keating Research, Inc.** to provide the following services:

    a. In October, 2023 **Keating Research, Inc.** will conduct a survey among a sample of 200 active voters who live in the SMART transportation district conducted using a hybrid methodology that includes live interviews conducted on the phone and text-to-online surveys.

    b. In June, 2024 **Keating Research, Inc.** will conduct a second survey among a sample of 200 active voters who live in the SMART transportation district conducted using a hybrid methodology that includes live interviews conducted on the phone and text-to-online surveys.

    c. For each survey, **Keating Research, Inc.** will deliver Topline Results and Xtab results documents (in .pdf format), a slide deck with data visualization and will provide a presentation to **SMART** explaining the poll results within 10 days of the poll being completed in the field. **Keating Research, Inc.** shall additionally be available for any follow-up questions related to the poll.

    d. Chris Keating of **Keating Research, Inc.** will provide ongoing consulting by attending one 1-hour meeting per week with the team, plus an additional 1.5-hour meeting each month beginning on September 1, 2023, and ending on November 5, 2024.

    e. For the avoidance of doubt, all survey results, poll data, reports, and poll analysis documents prepared by **Keating Research, Inc.** shall be considered Confidential Information.

2. Timeline. The parties anticipate that this research will begin on the Effective Date and continue through November 5, 2024 (election day), unless sooner terminated as provided herein.

3. Compensation.

    a. Fee and Invoicing**.**

        i. **SMART** shall pay **Keating Research, Inc.** a fixed fee of $20,000.00 for the October, 2023 survey. **Keating Research, Inc.** will invoice **SMART** for the full amount of $20,000.00 upon delivery of the Topline Results as specified in section 1(a).

        ii. **SMART** shall pay **Keating Research, Inc.** a fixed fee of $20,000.00 for the June, 2024 survey. **Keating Research, Inc.** will invoice **SMART** for the full amount of $20,000.00 upon delivery of the Topline Results as specified in section 1(b).

        iii. **SMART** shall pay **Keating Research, Inc.** a fee of $2,000.00 per month for the ongoing consulting and participation in the meetings as specified in section 1(d). **Keating Research, Inc.** will invoice **SMART** $2,000.00 per month for 14 months beginning on September 1st and ending on October 1, 2024 as specified in section 1(d).

        iv. The total amount that **SMART** shall pay **Keating Research, Inc.** over the lifetime of this contract is $68,000 as specified in section 3.

b. Payment**. SMART** shall remit amounts payable hereunder within 30 days of receipt of the invoices submitted by **Keating Research, Inc.** as set forth above. If **SMART** does not pay the invoice within the 30 day period, the amount due increases by 10% for each 30 days overdue.

4. Confidentiality and Security.

   a. Nondisclosure. **Keating Research, Inc.** shall not disclose the Confidential Information to anyone outside the **SMART** campaign team without the prior consent of **SMART** or as may be required by law or legal process, other than to any of **Keating Research, Inc.** employees or **Keating Research, Inc.** subcontractors who have a need to access such information in carrying out the research on **Keating Research, Inc**.'s behalf.

   b. Compelled Disclosure. If **Keating Research, Inc.** is required by law or by legal process to disclose any Confidential Information, then before any such disclosure, **Keating Research, Inc.** shall promptly notify **SMART** of such fact and shall cooperate with any **SMART** effort to prevent or restrict such disclosure.

5. Modification and Severability. The terms of this agreement may be modified or waived only by written agreement, signed by both of the parties. No failure by either party to exercise any right hereunder, in any particular instance, shall be deemed to constitute a waiver or surrender of that right in regard to any other circumstance. The invalidity in whole or in part of any provision of this Agreement shall not affect the validity of any other provisions.

6. Governing Law and Forum. This agreement shall be governed and construed in accordance with the laws of the State of Colorado applicable to contracts entered into in that State. The parties irrevocably consent to the exclusive jurisdiction and venue of any state or federal court of competent jurisdiction in Colorado, in any action, suit or other proceeding arising out of or relating to this agreement, and they waive any objection to such venue on the grounds of *forum non conveniens* or otherwise.

Keating Research, Inc. and **SMART** hereby execute and enter this agreement as of the Effective Date.

SMART

By: David Averill
Date: 8/17/23
Name: David Averill
Title: Executive Director

Keating Research, Inc

By: Chris Keating
Date: 8-18-23
Name: Chris Keating
Title: President

Keating Research, Inc.
308 Adams Ranch Rd. Unit 24
Mountain Village, CO 81435
(303) 514-0268
ckeating2009@gmail.com

INVOICE

INVOICE: #2023-029
DATE: SEPTEMBER 1, 2023

TO:
David Averill
Executive Director
San Miguel Authority for Regional Transportation

DESCRIPTION	AMOUNT
September 2023 Consulting	$2,000.00
TOTAL	**$2,000.00**

Make all checks payable to:
Keating Research, Inc.
308 Adams Ranch Rd. #24
Mountain Village, CO 81435

Keating Research ACH Bank Information
American National Bank
101 E Colorado Ave
Telluride, Co 81435

Account Name: Keating Research, Inc.
Account Number: 71164056
Routing Number: 107001232

Payment is due upon receipt.
If you have any questions concerning this invoice, contact Chris Keating, 303-514-0268, ckeating2009@gmail.com

Thank you for your business!

Keating Research, Inc.
308 Adams Ranch Rd. Unit 24
Mountain Village, CO 81435
(303) 514-0268
ckeating2009@gmail.com

INVOICE

INVOICE: #2023-037
DATE: OCTOBER 16, 2023

TO:
David Averill
Executive Director
San Miguel Authority for Regional Transportation

DESCRIPTION	AMOUNT
October 2023 Consulting	$2,000.00
TOTAL	**$2,000.00**

Make all checks payable to:
Keating Research, Inc.
308 Adams Ranch Rd. #24
Mountain Village, CO 81435

Keating Research ACH Bank Information
American National Bank
101 E Colorado Ave
Telluride, Co 81435

Account Name: Keating Research, Inc.
Account Number: 71164056
Routing Number: 107001232

Payment is due upon receipt.
If you have any questions concerning this invoice, contact Chris Keating, 303-514-0268, ckeating2009@gmail.com

Thank you for your business!

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Mountain Village, CO 81435
(303) 514-0268
ckeating2009@gmail.com

INVOICE

INVOICE: #2023-047
DATE: NOVEMBER 1, 2023

TO:
David Averill
Executive Director
San Miguel Authority for Regional Transportation

DESCRIPTION	AMOUNT
November 2023 Consulting	$2,000.00
TOTAL	**$2,000.00**

Make all checks payable to:

Keating Research, Inc.
308 Adams Ranch Rd. #24
Mountain Village, CO 81435

Keating Research ACH Bank Information
American National Bank
101 E Colorado Ave
Telluride, Co 81435

Account Name: Keating Research, Inc.
Account Number: 71164056
Routing Number: 107001232

Payment is due upon receipt.
If you have any questions concerning this invoice, contact Chris Keating, 303-514-0268, ckeating2009@gmail.com

Thank you for your business!

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Mountain Village, CO 81435
(303) 514-0268
ckeating2009@gmail.com

INVOICE

INVOICE: #2023-054
DATE: DECEMBER 1, 2023

TO:
David Averill
Executive Director
San Miguel Authority for Regional Transportation

DESCRIPTION	AMOUNT
December 2023 Consulting	$2,000.00
TOTAL	**$2,000.00**

Make all checks payable to:
Keating Research, Inc.
308 Adams Ranch Rd. #24
Mountain Village, CO 81435

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American National Bank
101 E Colorado Ave
Telluride, Co 81435

Account Name: Keating Research, Inc.
Account Number: 71164056
Routing Number: 107001232

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If you have any questions concerning this invoice, contact Chris Keating, 303-514-0268, ckeating2009@gmail.com

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ckeating2009@gmail.com

INVOICE

INVOICE: #2023-056
DATE: DECEMBER 22, 2023

TO:
David Averill
Executive Director
San Miguel Authority for Regional Transportation

DESCRIPTION	AMOUNT
SMART District Gondola Survey (Hybrid poll of 300 likely 2024 voters in the SMART District, including poll questionnaire development, sampling and fielding the poll, topline results, cross-tabulated results, and presentation of the key findings.)	$27,000.00
TOTAL	**$27,000.00**

Make all checks payable to:
Keating Research, Inc.
308 Adams Ranch Rd. #24
Mountain Village, CO 81435

Keating Research ACH Bank Information
American National Bank
101 E Colorado Ave
Telluride, Co 81435

Account Name: Keating Research, Inc.
Account Number: 71164056
Routing Number: 107001232

Approved for payment 12/27/23 akb

Payment is due upon receipt.
If you have any questions concerning this invoice, contact Chris Keating, 303-514-0268, ckeating2009@gmail.com

Thank you for your business!

Keating Research, Inc.
308 Adams Ranch Rd. Unit 24
Mountain Village, CO 81435
(303) 514-0268
ckeating2009@gmail.com

INVOICE

INVOICE: #2024-001
DATE: JANUARY 24, 2024

TO:
David Averill
Executive Director
San Miguel Authority for Regional Transportation

DESCRIPTION	AMOUNT
January 2024 Consulting	$2,000.00
TOTAL	**$2,000.00**

Make all checks payable to:

Keating Research, Inc.
308 Adams Ranch Rd. #24
Mountain Village, CO 81435

Keating Research ACH Bank Information
American National Bank
101 E Colorado Ave
Telluride, Co 81435

Account Name: Keating Research, Inc.
Account Number: 71164056
Routing Number: 107001232

Payment is due upon receipt.
If you have any questions concerning this invoice, contact Chris Keating, 303-514-0268, ckeating2009@gmail.com

Thank you for your business!

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Mountain Village, CO 81435
(303) 514-0268
ckeating2009@gmail.com

INVOICE

INVOICE: #2024-009
DATE: MARCH 27, 2024

TO:
David Averill
Executive Director
San Miguel Authority for Regional Transportation

DESCRIPTION	AMOUNT
February 2024 Consulting Approved for Payment 3.28.24 akb	$2,000.00
TOTAL	**$2,000.00**

Make all checks payable to:

Keating Research, Inc.
308 Adams Ranch Rd. #24
Mountain Village, CO 81435

Keating Research ACH Bank Information
American National Bank
101 E Colorado Ave
Telluride, Co 81435

Account Name: Keating Research, Inc.
Account Number: 71164056
Routing Number: 107001232

Payment is due upon receipt.
If you have any questions concerning this invoice, contact Chris Keating, 303-514-0268, ckeating2009@gmail.com

Thank you for your business!

Keating Research, Inc.
308 Adams Ranch Rd. Unit 24
Mountain Village, CO 81435
(303) 514-0268
ckeating2009@gmail.com

INVOICE

INVOICE: #2024-006
DATE: MARCH 17, 2024

TO:
David Averill
Executive Director
San Miguel Authority for Regional Transportation

DESCRIPTION	AMOUNT
March 2024 Consulting	$2,000.00
TOTAL	**$2,000.00**

Make all checks payable to:

Keating Research, Inc.
308 Adams Ranch Rd. #24
Mountain Village, CO 81435

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American National Bank
101 E Colorado Ave
Telluride, Co 81435

Account Name: Keating Research, Inc.
Account Number: 71164056
Routing Number: 107001232

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Thank you for your business!

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Mountain Village, CO 81435
(303) 514-0268
ckeating2009@gmail.com

INVOICE

INVOICE: #2024-012
DATE: APRIL 18, 2024

TO:
David Averill
Executive Director
San Miguel Authority for Regional Transportation

DESCRIPTION	AMOUNT
April 2024 Consulting	$2,000.00
TOTAL	**$2,000.00**

Make all checks payable to:
Keating Research, Inc.
308 Adams Ranch Rd. #24
Mountain Village, CO 81435

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Telluride, Co 81435

Account Name: Keating Research, Inc.
Account Number: 71164056
Routing Number: 107001232

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Thank you for your business!

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Mountain Village, CO 81435
(303) 514-0268
ckeating2009@gmail.com

INVOICE

INVOICE: #2024-027
DATE: MAY 29, 2024

TO:
David Averill
Executive Director
San Miguel Authority for Regional Transportation

DESCRIPTION	AMOUNT
May 2024 Consulting	$2,000.00
TOTAL	**$2,000.00**

Make all checks payable to:

Keating Research, Inc.
308 Adams Ranch Rd. #24
Mountain Village, CO 81435

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American National Bank
101 E Colorado Ave
Telluride, Co 81435

Account Name: Keating Research, Inc.
Account Number: 71164056
Routing Number: 107001232

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If you have any questions concerning this invoice, contact Chris Keating, 303-514-0268, ckeating2009@gmail.com

Thank you for your business!

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Mountain Village, CO 81435
(303) 514-0268
ckeating2009@gmail.com

INVOICE

INVOICE: #2024-029
DATE: JUNE 28, 2024

TO:
David Averill
Executive Director
San Miguel Authority for Regional Transportation

DESCRIPTION	AMOUNT
June 2024 Consulting	$2,000.00
TOTAL	**$2,000.00**

Make all checks payable to:

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308 Adams Ranch Rd. #24
Mountain Village, CO 81435

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American National Bank
101 E Colorado Ave
Telluride, Co 81435

Account Name: Keating Research, Inc.
Account Number: 71164056
Routing Number: 107001232

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If you have any questions concerning this invoice, contact Chris Keating, 303-514-0268, ckeating2009@gmail.com

Thank you for your business!

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Mountain Village, CO 81435
(303) 514-0268
ckeating2009@gmail.com

INVOICE

INVOICE: #2024-032
DATE: AUGUST 2, 2024

TO:
David Averill
Executive Director
San Miguel Authority for Regional Transportation

DESCRIPTION	AMOUNT
SMART District Gondola Survey – July 2024 (Hybrid survey of 302 voters in the SMART District, including poll questionnaire development, sampling and fielding the poll, topline results, cross-tabulated results, and presentation of the key findings.	$27,000.00
TOTAL	**$27,000.00**

Make all checks payable to:
Keating Research, Inc.
308 Adams Ranch Rd. #24
Mountain Village, CO 81435

Keating Research ACH Bank Information
American National Bank
101 E Colorado Ave
Telluride, Co 81435

Account Name: Keating Research, Inc.
Account Number: 71164056
Routing Number: 107001232

Payment is due upon receipt.
If you have any questions concerning this invoice, contact Chris Keating, 303-514-0268, ckeating2009@gmail.com

Thank you for your business!

Keating Research, Inc.
308 Adams Ranch Rd. Unit 24
Mountain Village, CO 81435
(303) 514-0268
ckeating2009@gmail.com

INVOICE

INVOICE: #2024-034
DATE: AUGUST 2, 2024

TO:
David Averill
Executive Director
San Miguel Authority for Regional Transportation

DESCRIPTION	AMOUNT
July 2024 Consulting	$2,000.00
TOTAL	**$2,000.00**

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308 Adams Ranch Rd. #24
Mountain Village, CO 81435

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American National Bank
101 E Colorado Ave
Telluride, Co 81435

Account Name: Keating Research, Inc.
Account Number: 71164056
Routing Number: 107001232

Payment is due upon receipt.
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Thank you for your business!

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Mountain Village, CO 81435
(303) 514-0268
ckeating2009@gmail.com

INVOICE

INVOICE: #2024-045
DATE: SEPTEMBER 30, 2024

TO:
David Averill
Executive Director
San Miguel Authority for Regional Transportation

DESCRIPTION	AMOUNT
August 2024 Consulting	$2,000.00
TOTAL	**$2,000.00**

Make all checks payable to:
Keating Research, Inc.
308 Adams Ranch Rd. #24
Mountain Village, CO 81435

Approved for Payment AKB 10.1.24

Keating Research ACH Bank Information
American National Bank
101 E Colorado Ave
Telluride, Co 81435

Account Name: Keating Research, Inc.
Account Number: 71164056
Routing Number: 107001232

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If you have any questions concerning this invoice, contact Chris Keating, 303-514-0268, ckeating2009@gmail.com

Thank you for your business!